

Outline planning permission: All matters reserved

APPLICATION NO: PA/2024/584

Address/Agent:

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Pegasus Group
33 Sheep Street
CIRENCESTER
GL7 1RQ

Applicant: Humber Tech Park Ltd

North Lincolnshire Council hereby gives notice that the application received on 14/05/2024 for:

Outline planning permission for the construction of a data centre of up to 309,000m² (GEA) delivered across up to three buildings, including ancillary offices, internal plant and equipment, emergency backup generators and associated fuel storage. Other works include internal roads and footpaths, cycle and car parking, hard and soft landscaping, security perimeter fencing, lighting, drainage, an electricity substation, a district heating unit, horticultural glasshouse and other associated works and infrastructure, with all matters reserved for subsequent consideration on land south of the A160, South Killingholme

has been considered and that permission for this development in accordance with the plans and written particulars submitted has been granted subject to the following conditions and reasons:

1.

No part of the development hereby approved shall be begun until details of the layout, scale and appearance of the development, the means of access and the landscaping of the site (hereinafter called "the reserved matters") have been submitted to and approved in writing by the Local Planning Authority for that part of the development. The development shall be carried out as approved.

Reason

To allow such details to be reserved for subsequent consideration and to comply with the requirements of Section 92 of the Town and Country Planning Act 1990, as amended by Section 51 of the Planning and Compulsory Purchase Act 2004.

2.

Application for approval of the reserved matters shall be made to the Local Planning Authority before the expiration of three years from the date of this permission.

Reason

To allow such details to be reserved for subsequent consideration and to comply with the requirements of Section 92 of the Town and Country Planning Act 1990, as

amended by Section 51 of the Planning and Compulsory Purchase Act 2004, and to ensure that the development is carried out within a reasonable period of time.

3.

The development hereby permitted shall be begun either before the expiration of three years from the date of this permission or before the expiration of two years from the date of approval of the last of the reserved matters to be approved, whichever is later.

Reason

To allow such details to be reserved for subsequent consideration and to comply with the requirements of Section 92 of the Town and Country Planning Act 1990, as amended by Section 51 of the Planning and Compulsory Purchase Act 2004 and to ensure that the development is carried out within a reasonable period of time.

4.

The application(s) for approval of reserved matters made pursuant to condition 1 shall be in accordance with the following:

Drawing No. 23217.901 – Site Location Plan.

Drawing No. 23217.301 Rev B – Land Use Parameter Plan

Drawing No. 23217.302 Rev A – Development Zones Parameter Plan

Drawing No. 23217.303 Rev A – Building Heights Parameter Plan

Drawing No. 23217.304 Rev A – Building Lines Parameter Plan

Drawing No. 23217.305 Rev B – Indicative Green Infrastructure Parameter Plan

Drawing No. 23217.306 Rev B – Access and Movement Parameters Plan

Reason

To ensure that the development accords with the scheme as approved.

5.

Each application for approval of reserved matters shall be accompanied by a statement which explains how that reserved matters application accords with the Parameters Plans listed in condition 4.

Reason

To achieve a comprehensive and cohesive form of development.

6.

No development shall take place until a Species Protection Plan (SPP) has been submitted to and approved in writing by the Local Planning Authority. The SPP shall include details of measures to avoid harm to badgers, hedgehogs, water voles and nesting birds during vegetation clearance and construction works. Development shall be carried out only in accordance with the SPP so approved.

Reason

To conserve protected and priority species in accordance with saved policy LC5 of the North Lincolnshire Local Plan and policy CS17 of the North Lincolnshire Core Strategy.

7.

Prior to the commencement of development a Biodiversity Net Gain and Management Plan shall be submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in strict accordance with the approved plan.

The plan shall include:

- (a) details of at least 10 bat roosting features to be installed;
- (b) details of at least 10 nesting sites to be installed to support a variety of bird species;
- (c) restrictions on lighting to avoid impacts on bat roosts, bat foraging areas, bird nesting sites and sensitive habitats;
- (d) details of road gullies and road drainage designed to minimise harm to amphibians;
- (e) prescriptions for the enhancement, planting and aftercare of native trees, shrubs, hedgerows and wildflowers of high biodiversity value;
- (f) details of wetland habitat to be created and managed as part of sustainable drainage;
- (g) details to confirm that the measures proposed will provide a measurable net gain in biodiversity value of least 10% in accordance with the statutory biodiversity metric;
- (h) proposed timings for the above works in relation to the completion of the data centre buildings.

All approved features shall be retained thereafter for the lifetime of the development.

Reason

To conserve and enhance biodiversity in accordance with policies CS5 and CS17 of the Core Strategy.

8.

Prior to the development hereby permitted first being occupied or brought into use, a report providing evidence of compliance with the Biodiversity Net Gain and Management Plan approved pursuant to condition 7 above shall be submitted to and approved in writing by the Local Planning Authority. Thereafter, the site shall be managed in accordance with the Biodiversity Net Gain and Management Plan for a period of at least 30 years.

Reason

To conserve and enhance biodiversity in accordance with policies CS5 and CS17 of the Core Strategy.

9.

Development shall not begin until a site-wide surface water drainage scheme based on the submitted Flood Risk Assessment/Drainage Strategy and Utilities

Assessment 2024, Mabbett and Associates Ltd, has been submitted to and approved in writing by the Local Planning Authority in consultation with the Lead Local Flood Authority. The scheme shall provide details of any phased implementation and shall subsequently be implemented in accordance with the approved details.

Reason

To prevent the increased risk of flooding to themselves and others, to improve and protect water quality, and to ensure the implementation and future maintenance of the sustainable drainage structures.

10.

Prior to the commencement of development a Phasing Plan setting out the details of the phasing of the development, including any site preparation phases, shall be submitted to and approved in writing by the Local Planning Authority. Thereafter, the development shall be carried out in complete accordance with the approved Phasing Plan.

Reason

To ensure the development is phased to avoid an adverse impact on drainage infrastructure.

11.

No development, other than that required to be carried out as part of an approved scheme of remediation, shall commence until parts 1 to 4 below have been complied with. If unexpected contamination is found after development has begun, development must be halted on that part of the site affected by the unexpected contamination to the extent specified by the Local Planning Authority in writing until part 4 has been complied with in relation to that contamination.

Part 1: Site Characteristics

A Phase 1 desk study shall be carried out to identify and evaluate all potential sources of contamination and the impacts on land and/or controlled waters, relevant to the site. The desk study shall establish a 'conceptual model' of the site and identify all plausible pollutant linkages. Furthermore, the assessment shall set objectives for intrusive site investigation works/Quantitative Risk Assessment (or state if none required). Two full copies of the desk study and a non-technical summary shall be submitted to the Local Planning Authority for approval prior to proceeding to further site investigation.

An investigation and risk assessment, in addition to any assessment provided with the planning application, must be completed in accordance with a scheme to assess the nature and extent of any contamination on the site, whether or not it originates on the site. The contents of the scheme are subject to the approval in writing of the Local Planning Authority. The investigation and risk assessment must be undertaken by competent persons and a written report of the findings must be produced. The written report is subject to the approval in writing of the Local Planning Authority. The report of the findings must include:

- (i) a survey of the extent, scale and nature of contamination;
- (ii) an assessment of the potential risks to:

- human health;
- property (existing or proposed) including buildings, crops, livestock, pets, woodland, and service lines and pipes;
- adjoining land;
- groundwaters and surface waters;
- ecological systems;
- archaeological sites and ancient monuments;

(iii) an appraisal of remedial options, and a proposal of the preferred option(s).

Part 2: Submission of Remediation Scheme

A detailed remediation scheme to bring any parts of the site to a condition suitable for the intended use by removing unacceptable risks to human health, buildings and other property and the natural and historical environment must be prepared and is subject to the approval in writing of the Local Planning Authority. The scheme must include all works to be undertaken, proposed remediation objectives and remediation criteria, timetable of works and site management procedures. The scheme must ensure that the site will not qualify as contaminated land under Part 2A of the Environmental Protection Act 1990 in relation to the intended use of the land after remediation.

Part 3: Implementation of Approved Remediation Scheme

The approved remediation scheme must be carried out in accordance with its terms prior to the commencement of development in that part of the site other than that required to carry out remediation, unless otherwise agreed in writing by the Local Planning Authority. The Local Planning Authority must be given two weeks' written notification of commencement of the remediation scheme works.

Following completion of measures identified in the approved remediation scheme, a verification report (referred to in PPS23 as a validation report) that demonstrates the effectiveness of the remediation carried out must be produced and is subject to the approval in writing of the Local Planning Authority.

Part 4: Reporting of Unexpected Contamination

In the event that contamination is found at any time when carrying out the approved development that was not previously identified it must be reported in writing immediately to the Local Planning Authority. An investigation and risk assessment must be undertaken in accordance with the requirements of Part 1, and where remediation is necessary a remediation scheme must be prepared in accordance with the requirements of Part 2, which is subject to the approval in writing of the Local Planning Authority.

Following completion of measures identified in the approved remediation scheme a verification report must be prepared, which is subject to the approval in writing of the Local Planning Authority in accordance with Part 3.

Reason

To ensure the site is safe for future users and construction workers.

12.

Construction, demolition and site clearance operations shall be limited to the following days and hours:

- 08:00 to 18:00hrs Monday to Friday
- 08:00 to 13:00hrs Saturday.

There shall be no construction, demolition or site clearance operations on Sundays or public holidays and nor shall there be any installation of construction plant or machinery on site outside these hours without prior written approval from the Local Planning Authority.

Reason

To minimise the impact of the development on adjacent properties in accordance with policy DS1 of the North Lincolnshire Local Plan.

13.

No stage of the development hereby permitted shall commence until a Construction Environmental Management Plan (CEMP) has been submitted to and approved in writing by the Local Planning Authority. The CEMP shall include the following:

Noise and vibration – The CEMP shall set out the particulars of:

- (a) the works, and the method by which they are to be carried out;
- (b) the noise and vibration attenuation measures to be taken to minimise noise and vibration resulting from the works, including any noise limits; and
- (c) a scheme for monitoring the noise and vibration during the works to ensure compliance with the noise limits and the effectiveness of the attenuation measures.

Light – The CEMP shall set out the particulars of:

- (a) specified locations for contractors' compounds and materials storage areas;
- (b) areas where lighting will be required for health and safety purposes;
- (c) the location of potential temporary floodlights;
- (d) the identification of sensitive receptors likely to be impacted upon by light nuisance;
- (e) proposed methods of mitigation against potential light nuisance, including potential glare and light spill, on sensitive receptors.

Dust – The CEMP shall set out the particulars of:

- (a) site dust monitoring, recording and complaint investigation procedures;

- (b) the identification of receptors and the related risk of dust impact at all phases of the development, including when buildings and properties start to be occupied;
- (c) the provision of water to the site;
- (d) dust mitigation techniques at all stages of development;
- (e) the prevention of dust trackout;
- (f) communication with residents and other receptors;
- (g) a commitment to cease the relevant operation if dust emissions are identified either by regular site monitoring or by the local authority;
- (h) a 'no burning of waste' policy.

The development shall thereafter be carried out in accordance with the approved CEMP.

Reason

To minimise the impact of the development on adjacent properties in accordance with policy DS1 of the North Lincolnshire Local Plan.

14.

Development shall be carried out in accordance with the submitted Humber Tech Park, Lighting Assessment – Report Ref: 28470-LIGH-0401 Rev A, dated April 2024.

Reason

To minimise light pollution in accordance with policy DS12 of the North Lincolnshire Local Plan.

15.

Routine testing of the generators serving the data centre shall be restricted to the hours of 09:00 to 18:00 Monday to Friday and the testing shall not exceed 1 hour in duration for any given generator.

The occupiers of the Noise Sensitive Receptor properties 1 to 5 inclusive as identified in report reference: Humber Tech Park, Noise Assessment – Report Ref: 28470-ENV-0401 Rev A, dated April 2024 shall be given written notice of the times and dates for testing 7 days in advance.

Reason

In the interest of amenity in accordance with policies DS1 and DS11 of the North Lincolnshire Local Plan.

16.

Prior to the first occupation of the data centre buildings hereby permitted, details of any noise mitigation measures for the typical operations shall be submitted to the Local Planning Authority for approval in writing which ensures that the BS 4142:2014 + A1:2019 Rating Level of the development hereby permitted shall not exceed +5db above the typical background sound level at any time at any noise sensitive property

as determined in report reference: Humber Tech Park, Noise Assessment – Report Ref: 28470-ENV-0401 Rev A, dated April 2024.

All measurements and assessments shall be made according to BS 4142:2014 + A1:2019.

Reason

In the interest of amenity in accordance with policies DS1 and DS11 of the North Lincolnshire Local Plan.

17.

Within three months of the data centre buildings being brought into operation, a sound validation report shall be submitted to and agreed in writing by the Local Planning Authority. The report shall demonstrate that condition 16 has been complied with. The measurements and assessment within the validation survey shall be made according to BS 4142:2014 + A1:2019.

Reason

In the interest of amenity in accordance with policies DS1 and DS11 of the North Lincolnshire Local Plan.

18.

Any application for approval of reserved matters submitted pursuant to condition 1 shall ensure that provision is made for a Construction and Maintenance Strip (comprising a 13m strip either side of the VPI gas pipeline) that will be kept free from obstructions and will be available for maintenance activities at all times both during the construction phase and following completion of the development.

Reason

To protect the pipeline that runs through the site.

19.

Any works that are approved within the Construction and Maintenance Strip, such as access roads and landscaping, shall be undertaken in strict accordance with a Construction Method Statement (CMS) which must first be submitted to and approved in writing by the Local Planning Authority (in consultation with the VPI Pipeline Operator) before any works are undertaken within that part of the site. The submitted CMS must demonstrate how the works preserve VPI's rights and access to the VPI Gas Pipeline and can be undertaken safely whilst ensuring no disruption to the buried apparatus.

Reason

To protect the pipeline that runs through the site.

20.

No above-ground works shall commence on site until details, including timescales for the provision and construction, of:

- the method of providing the new vehicular access onto Habrough Road, including the required visibility splays and off-site highway works; and

- the provision of a new shared footway/cycleway along Habrough Road, including any crossing points and the connections into the existing facility;

have been submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved details.

Reason

In the interest of highway safety and to comply with policies T2 and T8 of the North Lincolnshire Local Plan.

21.

No part of the development hereby permitted shall be occupied until secure cycle parking has been provided for that part of the development in accordance with details which have first been submitted to and approved in writing by the Local Planning Authority. The cycle parking shall be maintained in accordance with the approved details for the lifetime of the development.

Reason

In the interest of highway safety and to comply with policies T2 and T8 of the North Lincolnshire Local Plan.

22.

No part of the development hereby permitted shall be brought into use until details of:

- the loading, off-loading and turning areas for all vehicles; and
- the parking spaces and access aisles (including surface markings);

for that part of the development have been completed in accordance with details to be submitted to and approved in writing by the Local Planning Authority. Once provided, these facilities shall thereafter be retained for their purpose for the lifetime of the development.

Reason

In the interest of highway safety and to comply with policy T19 of the North Lincolnshire Local Plan.

23.

Prior to the occupation of the development a detailed Travel Plan shall have been submitted to and approved in writing by the Local Planning Authority. The Travel Plan shall specify initiatives to be implemented by the development to promote and maximise the use of sustainable travel to and from the site by a variety of non-car means (including public transport, walking and cycling) and set out measures to ensure compliance with, and monitoring, of the Travel Plan objectives. The development shall operate in full accordance with all measures identified within the Travel Plan from first occupation.

Reason

To ensure the development operates in a safe and sustainable manner with minimal disruption to the highway network.

24.

No development shall take place until a construction phase traffic management plan showing details of the following has been submitted to and approved in writing by the Local Planning Authority in consultation with National Highways (or its successors):

- a pre/post construction condition survey of the carriageway to identify any defects and how they will be rectified.
- all associated traffic movements, including delivery vehicles and staff/construction movements
- vehicle routeing to the site and the methods taking to inform contractors of the agreed route
- any abnormal load movements
- contractor parking and welfare facilities
- storage of materials, and
- traffic management requirements, including the means of controlling the deposition of mud onto the adjacent highway along with appropriate methods of cleaning the highway as may be required.

Once approved the plan shall be implemented, reviewed and updated as necessary throughout the construction period.

Reason

In the interest of highway safety and to comply with policy T18 of the North Lincolnshire Local Plan and to manage construction traffic impacts for the A180 and A160 and ensure the safe and efficient operation of the SRN.

25.

Prior to the first occupation of the development hereby approved, an Operational Management Plan (OMP) shall be submitted for approval in writing by the Local Planning Authority (following consultation with National Highways). This shall:

- a. identify measures to limit the level of vehicle movements generated by the development during the peak hours of 0700–0800 and 1600–1700 to no more than 176 two-way vehicle movements in each peak hour; and
- b. include a scheme for the monitoring and reporting of peak hour flows.

Thereafter the development must operate in accordance with the OMP unless or until there is an updated Transport Assessment that has been submitted to and approved in writing by the Local Planning Authority (in consultation with National Highways) which:

- c. identifies measures for how any traffic queues on the A180 Westbound Slip Road approach to the Brocklesby Interchange can be managed or mitigated; and

- d. identifies timescales for the implementation of any such management or mitigation measures.

There shall be no deviation from the approved OMP until any necessary management or mitigation measures identified in the updated Transport Assessment have been fully implemented in accordance with the agreed details.

Reason

In the interest of highway safety and to comply with policy T18 of the North Lincolnshire Local Plan, and to manage operational traffic impacts for the A180 and A160 and ensure the safe and efficient operation of the Strategic Road Network.

26.

Within 12 months of occupation of each data centre building, a BREEAM certificate confirming that the relevant building achieves a “Very Good” BREEAM rating shall be submitted to and approved in writing by the Local Planning Authority.

Reason

In the interest of achieving sustainable form of development.

27.

No development shall take place within any reserved matters phase until a Waste Management Strategy for that phase has been submitted to and approved in writing by the Local Planning Authority. The WMS shall be implemented as approved and maintained thereafter.

Reason

To protect the amenity of the locality in accordance with policy DS1 of the North Lincolnshire Local Plan.

28.

Prior to the submission of the first reserved matters application, a written programme of archaeological investigation, on land outlined in red as shown on Drawing No. 23217.901 – Site Location Plan, including a timeframe for on-site work and off-site work such as the analysis, publishing and archiving of the results, shall be submitted to and approved in writing by the Local Planning Authority.

For the avoidance of doubt the results of the trial trenching agreed as part of the written programme of archaeological investigation shall be broadly in accordance with the Provisional Trench Plan Drawing No. P23_ 2578_TP Rev 2 and shall be submitted together with the first reserved matters application including the details of the measures to ensure that any archaeological interest found in the trial trenching, which are demonstrably of national significance, shall be preserved in situ in accordance with the agreed scheme.

Following an initial phase of trenching, no development, including any ground works, shall take place on any part(s) of the site where it is necessary to preserve in situ heritage assets of archaeological interest which are demonstrably of national significance.

In the case of remains of lower significance being located in the trenching, a written programme of archaeological investigation for archaeological excavation will be

required to be approved and implemented prior to the commencement of any groundworks on site. The programme shall be carried out in accordance with the approved timeframe.

Reason

To comply with policy HE9 of the North Lincolnshire Local Plan because the site lies in an area of archaeological interest.

29.

No development shall commence (with the exception of archaeological, remediation and drainage) until a Soil Management Plan (SMP) is submitted to and approved in writing by the Local Planning Authority. The SMP, in line with guidance in the Defra document "The Construction Code of Practice for Sustainable Use of Soils on Construction Sites", shall include the following but not be limited to:

- appropriate soil handling, storage and restoration methods.

Reason

In the interests of visual amenity, nature conservation and mobility and to comply with paragraph 135 of the National Planning Policy Framework.

30.

The development hereby approved shall be carried out in complete accordance with the recommendations set out in the Arboricultural Assessment issued 16.04.2024 by Barton Hyett associates Ltd unless otherwise agreed through applications for approval of reserved matters pursuant to condition 1. No development shall commence within any reserved matters phase until a Tree Protection Plan (TPP) for that phase has been submitted to and approved in writing by the Local Planning Authority. The measures identified within the TPP shall be fully installed and all tree protection measures shall remain in place until the relevant phase of development is complete.

Reason

To ensure that no damage is caused to trees during construction work and to comply with policy LC12 of the North Lincolnshire Local Plan.

31.

All planting, seeding or turfing within each reserved matters area and comprised in the approved details of landscaping within the reserved matters area shall be carried out in the first planting season following the occupation of the specific reserved matters area or the completion of that reserved matters area, whichever is the sooner. If within a period of five years from the date of the planting of any tree/hedge/shrub that tree/hedge/shrub, or any replacement, is removed, uprooted or destroyed or dies, or becomes, in the opinion of the Local Planning Authority, seriously damaged or defective, another tree/hedge/shrub of the same species and size as that originally planted shall be planted in the same location as soon as reasonably possible and no later than the first available planting season.

Reason

In the interest of visual amenity and nature conservation and to comply with policies LC5 of the North Lincolnshire Local Plan and CS17 of the North Lincolnshire Core Strategy.

32.

Development shall not commence within any reserved matters phase until full details of the proposed boundary treatments for that phase have been submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved details.

Reason

In the interest of visual amenity and to comply with policy DS1 of the North Lincolnshire Local Plan.

33.

No development shall take place until plans showing the existing and proposed ground levels of the site and existing ground levels of adjacent land have been submitted to and approved in writing by the Local Planning Authority. The submitted details shall include existing and proposed cross-section drawings of the site indicating the extent of ground works required to achieve finished site levels. The reserved matters application(s) submitted pursuant to condition 1 shall include details of the slab levels of the proposed buildings. The development shall be implemented strictly in accordance with the agreed details.

Reason

To achieve a satisfactory form of development and to comply with DS1 of the North Lincolnshire Local Plan.

34.

Notwithstanding the provisions of the Town and Country Planning (Use Classes) Order 1987 (as amended) or in any provision in any statutory instrument revoking and re-enacting that Order with or without modification, the data centre hereby approved shall be used as a data centre only and for no other purpose whatsoever.

Reason

In the interest of the safe and efficient operation of the Strategic Road Network.

35.

The Greenhouse Buildings hereby permitted shall be constructed and completed no later than 12 months from the first operation of any Data Centre building and the District Wide Heating System.

Reason

In the interest of proper planning and to secure the long-term agricultural production of the site.

36.

Any reserved matters application which includes a building shall be accompanied by a Greenhouse Gas Emissions Plan (GGEP) which demonstrates how the development will accord with the conclusions set out in the Sustainability and Renewable Energy Statement by BE Design dated 24.04.2024. Any measures identified within the GGEP shall be fully installed and all construction specifications and operational measures shall remain in place in perpetuity thereafter.

Reason

To meet the challenges of climate change and to comply with paragraph 157 of the National Planning Policy Framework.

Informatives

1.

This application must be read in conjunction with the relevant Section 106 Agreement.

2.

In determining this application, the council, as local planning authority, has taken account of the guidance in paragraph 38 of the National Planning Policy Framework in order to seek to secure sustainable development that improves the economic, social and environmental conditions of the area.

3.

The development hereby granted planning permission requires works to be carried out within the limits of the adopted (public) highway. Therefore:

- before ANY construction works take place within the limits of the highway you MUST contact the highway authority on telephone number 01724 297000 to arrange for the relevant permissions/licenses to be issued;
- before ANY service (utility) connections take place within the limits of the highway you MUST contact the highway authority on telephone number 01724 297319 to arrange for the relevant permissions/licenses to be issued.

Dated: 28 August 2024

Signed:



Rebecca Leggott
Development Management Lead

WARNING

THIS DOCUMENT DOES NOT CONSTITUTE ANY APPROVAL
UNDER THE BUILDING REGULATIONS

WARNING

This is a **PLANNING PERMISSION ONLY**. It does NOT convey any approval or consent required under any enactment, byelaw, order or regulation other than those referred to in the heading of this notice. It is **IMPORTANT** that you should read the notes concerning **APPEALS** below.

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse permission for the proposed development or to grant it subject to conditions, then you can appeal to the Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice.
- If this is a decision on a planning application relating to the same or substantially the same land and development as is already the subject of an enforcement notice and if you want to appeal against your local planning authority's decision on your application, then you must do so within 28 days of the date of this notice.
- If an enforcement notice is served relating to the same or substantially the same land and development as in your application and if you want to appeal against your local planning authority's decision on your application, then you must do so within 28 days of the date of service of the enforcement notice, or within 6 months [12 weeks in the case of a householder appeal] of the date of this notice, whichever period expires earlier.

Please note however:

If your application was for **householder development** (dwelling house extensions, alterations, garages, swimming pools, walls, fences, vehicular access, porches, satellite dishes etc) or for a minor commercial application then you must do so **within 12 weeks** of the date of this notice.

- Appeals can be made online at <https://www.gov.uk/planning-inspectorate>. If you are unable to access the online appeal form, please contact the Planning Inspectorate to obtain a paper copy of the appeal form on tel: 0303 444 5000.
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.
- If you intend to submit an appeal that you would like examined by inquiry then you must notify the Local Planning Authority and Planning Inspectorate (inquiryappeals@planninginspectorate.gov.uk) at least 10 days before submitting the appeal. [Further details are on GOV.UK](#)

Purchase Notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the council in whose area the land is situated. This notice will require the council to purchase his interest in the land in accordance with the provisions of Part V1 of the Town and Country Planning Act 1990.